

Second, as to the hours spent, the court finds spending 1.2 hours on preparing the complaint is excessive. A reasonable amount is .5 hours. The court also finds a clerical task in serving the complaint. The court also reduces the 3.0 hours for "Review Oppo / Draft / File Serve Reply / Hrg" to 2.0 hours. The court reduces 1.9 hours total.

As for costs, the court finds the costs to be supported and reasonable, and awards the full amount of \$705.21.

Plaintiff's Motion for Attorney's Fees GRANTED in PART.

Plaintiff awarded \$8,470 (15.4 hours at \$550/hr) + \$705.21 costs for total of \$9,175.21.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600719	MUNOZ MACIAS VS ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION	HEARING ON MOTION TO COMPEL ARBITRATION

Tentative Ruling: No tentative ruling. Hearing is continued to 10.27.26.

Plaintiff is permitted to file a supplemental opposition to the Reply considering the additional information contained in Defendant's Reply. Any additional briefing filed by either party will result in sanctions. All papers relating to the motion to compel arbitration shall be served electronically on counsels' email addresses of record. Defendant disregarded the court's order on 8.10.26. Sanctions imposed in the amount of \$250 as to attorney Juan M. Armenta, payable to the court in 30 days. Further violations shall result in additional sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600927	HERNANDEZ VS AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	HEARING RE: MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY ERICA MARIA HERNANDEZ

Tentative Ruling: A party may file a motion compelling further answers to RFPs if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. §2031.310.) The moving party on a motion to compel further responses to RFPs must set forth "specific facts showing good cause justifying the discovery sought by the demand." (C.C.P. §2031.310(b)(1).) The burden to establish "good cause," is met by a fact-specific showing of relevance. (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117, citing *Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 1996) ¶¶ 8:1495.6 to 8:1495.10.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement." (*Glenfed Development Corp., supra*, 53 Cal.App.4th at 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good

cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

Defendant first argues Plaintiff's motion should be denied because their separate statement does not comply with CRC 3.1345. CRC 3.1345(c) states that "[a] separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." It then states that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) While Defendant is correct that Plaintiffs include general arguments about various objections raised by Defendant in their separate statement, they do set forth the text of each request, Defendant's response, and the reasons why further responses are required. Thus, Plaintiffs comply with CRC 3.1345, and Defendant's argument to the contrary is without merit.

Defendant argues that AB1755 limited the scope of permissible discovery in lemon law cases, so to the extent the documents sought by Plaintiff are outside those listed in AB1755 and C.C.P. § 871.26(h), they are not relevant and do not have to be produced. (Opposition, pp. 4:20-6:5.) This is incorrect. AB1755, codified in C.C.P. §§ 871.20-871.28, among other things, provides a list of documents that must be exchanged by the parties within 60 days of a responsive pleading. (See, C.C.P. § 871.26(b), (h).) In no way does it limit the scope of discovery - it is not an exhaustive list of the only things allowed to be discovered in a lemon law case. Furthermore, pursuant to C.C.P. § 871.20(a), the above code sections apply only "to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter." There is no evidence that Defendant elected to proceed under this chapter, so it does not apply.

While the parties disagree about whether the initial responses to the RFPs were sufficient, there is no dispute that Defendant produced documents on July 30, 2026, and provided supplemental responses to the RFPs on August 12, 2026. (See, Decl. of Nicholas R. Carrera at ¶¶ 6-7; Reply, p. 1:15-18.) Contrary to Plaintiff's argument, this makes the present motion moot. To the extent that Plaintiff believes the supplemental responses are deficient, it can file a new motion based on those responses, after meeting and conferring with Defendant.

Defendant's Request for Sanctions DENIED.

Plaintiff's Motion to Compel Further Responses to Request for Production, Set One, is deemed MOOT.

Case Management Conference continued to 1.27.27. Prior to the next hearing, parties are directed to have a meet and confer and file a joint updated Case Management Statement. The updated Case Management Statement shall be submitted on pleading paper, addressing the following:

-Plaintiff shall address why the vehicle qualifies as a "buyback" and describe what was or is still wrong with the vehicle. The information is to be specific and not just give a generic term such as "engine/steering/braking" problems

-Defendant shall address why the vehicle does not qualify for a “buyback” or that the vehicle does qualify, but there are issues regarding the buyback price, credits, attorney fees/costs etc.

The updated Case Management Statement shall be filed at least 5 court days prior to the continued Case Management Conference.